

STATE OF NEW YORK

5894--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 24, 2025

Introduced by M. of A. BERGER -- read once and referred to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the workers' compensation law, in relation to defining mental health practitioners with diagnostic authority

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (m) of subdivision 1 of section 13-b of the work-
2 ers' compensation law, as added by section 1 of part CC of chapter 55 of
3 the laws of 2019, is amended and a new paragraph (r) is added to read as
4 follows:

5 (m) "Provider" shall mean a duly licensed acupuncturist, chiropractor,
6 nurse practitioner, occupational therapist, physical therapist, physi-
7 cian, physician assistant, podiatrist, psychologist, mental health prac-
8 titioner, or social worker authorized by the chair.

9 (r) "Mental health practitioner" shall mean an individual licensed
10 pursuant to article one hundred sixty-three of the education law who has
11 met the requirements for diagnostic privilege set forth in section
12 eighty-four hundred one-a of the education law.

13 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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